

California Incapacity Planning Checklist

Your will and trust only activate at death. This checklist covers the two documents that protect you while you're alive.

■ Companion to Video 3: Powers of Attorney & Healthcare Directives — BayLegal YouTube Channel

SECTION 1 — DURABLE POWER OF ATTORNEY: DOCUMENT STATUS

- ☐ I have a signed durable power of attorney executed under California law.
- ☐ The word 'durable' is specifically included — the POA remains in effect during incapacity.
A standard (non-durable) POA becomes void the moment you are incapacitated — when you need it most.
- ☐ My POA was executed with proper California formalities (notarized or witnessed).
- ☐ My POA has been reviewed or updated within the last three years.
- ☐ My financial institutions have a copy of my POA on file.
Some banks require their own form or advance registration. Confirm before an emergency arises.

SECTION 2 — DURABLE POWER OF ATTORNEY: SCOPE AND AUTHORITY

- ☐ My POA specifically authorizes real estate transactions.
Generic language is frequently rejected by California title companies and lenders.
- ☐ My POA specifically authorizes banking and financial account transactions.
- ☐ My POA specifically authorizes trust operations on my behalf.
- ☐ My POA specifically authorizes business entity management.
If you hold property in an LLC: your POA must authorize your agent to act as member or manager.
- ☐ My POA specifically authorizes tax filings and IRS matters.
- ☐ If I conduct 1031 exchanges: my POA includes specific 1031 exchange authority.
The 45-day ID window and 180-day exchange period do not pause for medical emergencies.
- ☐ If I own a medical practice: my POA addresses practice management during incapacity.
Professional corporation management, staff payroll, patient records, and billing must be addressed explicitly.

SECTION 3 — DURABLE POWER OF ATTORNEY: YOUR AGENT

- ☐ My named agent is someone I trust completely with full access to my financial life.

- ☐ My named agent is organized, capable under pressure, and geographically accessible.
- ☐ I have named a successor agent in case my primary agent is unable or unwilling to serve.
- ☐ My agent knows they are named and knows where to find the document.
An agent who doesn't know they've been named cannot act quickly in an emergency.
- ☐ I have reviewed my agent designation within the last three years.
Relationships and circumstances change. The right person ten years ago may not be the right person today.

SECTION 4 — ADVANCE HEALTHCARE DIRECTIVE: DOCUMENT STATUS

- ☐ I have a signed advance healthcare directive (AHCD) under California law.
- ☐ My AHCD was executed with proper California formalities (notarized or two witnesses).
Note: witnesses cannot be your healthcare agent, your heirs, or your healthcare provider.
- ☐ My AHCD has been reviewed or updated within the last three years.
- ☐ My physician has a copy of my AHCD in my medical file.
- ☐ My healthcare agent has a copy of my AHCD and knows they are named.

SECTION 5 — ADVANCE HEALTHCARE DIRECTIVE: YOUR WISHES

- ☐ My AHCD names a healthcare agent to make medical decisions on my behalf.
- ☐ My AHCD names a successor healthcare agent as a backup.
- ☐ My AHCD documents my wishes regarding life-sustaining treatment.
- ☐ My AHCD documents my wishes regarding artificial nutrition and hydration.
- ☐ My AHCD documents my wishes regarding pain management and comfort care.
- ☐ My AHCD documents my wishes regarding organ donation (if applicable).
- ☐ I have discussed my wishes with my healthcare agent so they can act with confidence.
A document alone is not enough — your agent needs to understand your values and priorities.

SECTION 6 — COORDINATION WITH YOUR BROADER ESTATE PLAN

- ☐ My POA agent and my successor trustee are aware of each other and their respective roles.
- ☐ My POA and AHCD are consistent with my will and trust in naming trusted individuals.



My complete estate plan — all four documents — has been reviewed as a coordinated package.

A will, trust, POA, and AHCD that were drafted separately may have inconsistencies. A coordinated review catches these.

Without a durable POA and AHCD, your family's only option during your incapacity may be a court conservatorship — a process that is expensive, invasive, and takes months. These documents cost a fraction of what a conservatorship costs, and they can be in place today.

Ready to close your gaps?

Schedule a consultation at BayLegal.com or call us at (650) 240-2800

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